A BILL

To amend sections 2919.23, 3109.03, 3109.04, 3109.042, 3109.043, 3109.051, 3109.053, 3109.401, and 3125.10 and to enact sections 3109.044, 3109.045, 3109.046, 3109.047, and 3119.024 of the Revised Code to establish equal parental status and a presumption of shared parenting, to limit changes to parenting orders to courts and parental agreement, to regulate the cost of court-required services, to provide for administrative enforcement of parenting time orders, and to designate the components of child support.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF OHIO:

Section 1. That sections 2919.23, 3109.03, 3109.04, 3109.042, 3109.043, 3109.051, 3109.053, 3109.401, and 3125.10 be amended and sections 3109.044, 3109.045, 3109.046, 3109.047, and 3119.024 of the Revised Code be enacted to read as follows:

Sec. 2919.23. (A) No person, knowing the person is without privilege to do so or being reckless in that regard, shall

entice, take, keep, or harbor a person identified in division (A)(1), (2), or (3) of this section from the parent, guardian, or custodian of the person identified in division (A)(1), (2), or (3) of this section:

(1) A child under the age of eighteen, or a child with a mental or physical disability under the age of twenty-one;

(2) A person committed by law to an institution for delinquent, unruly, neglected, abused, or dependent children;

(3) A person committed by law to an institution for persons with mental illnesses or an institution for persons with intellectual disabilities.

(B) No person shall aid, abet, induce, cause, or encourage a child or a ward of the juvenile court who has been committed to the custody of any person, department, or public or private institution to leave the custody of that person, department, or institution without legal consent.

(C) It is an affirmative defense to a charge of enticing or taking under division (A)(1) of this section, that the actor reasonably believed that the actor’s conduct was necessary to preserve the child’s health or safety. It is an affirmative defense to a charge of keeping or harboring under division (A) of this section, that the actor in good faith gave notice to law enforcement or judicial authorities within a reasonable time

after the child or committed person came under the actor's shelter, protection, or influence.

(D)(1) Whoever violates this section is guilty of interference with custody.

(2) Except as otherwise provided in this division, a violation of division (A)(1) of this section is a misdemeanor of the first degree. If the child who is the subject of a violation of division (A)(1) of this section is removed from the state or if the offender previously has been convicted of an offense under this section, a violation of division (A)(1) of this section is a felony of the fifth degree. If the child who is the subject of a violation of division (A)(1) of this section suffers physical harm as a result of the violation, a violation of division (A)(1) of this section is a felony of the fourth degree.

(3) A violation of division (A)(2) or (3) of this section is a misdemeanor of the third degree.

(4) A violation of division (B) of this section is a misdemeanor of the first degree. Each day of violation of division (B) of this section is a separate offense.

(E) For purposes of division (A)(1) of this section:

(1) A person who keeps a child from a parent during that parent's court-ordered parenting time acts without privilege,

unless the person has a lawful excuse described in division (K) (3) of section 3109.051 of the Revised Code.

(2) A person who acts on a reasonable reading of an order that is unclear about the time in question does not act knowingly or recklessly.

(3) That the conduct may also be addressed by contempt or another civil remedy does not make it a civil matter and does not prevent investigation or prosecution.

(F) When a family support enforcement agency or a court refers a matter to a prosecutor, as defined in section 2935.01 of the Revised Code, all of the following apply:

(1) Within sixty days after the referral, the prosecutor shall either file a charge or send written notice to the referring agency or court, and to the parties, that prosecution is declined. The prosecutor may extend the period once, by not more than thirty days, by written notice of good cause given before the period ends.

(2) A notice of declination need not state reasons.

(3) This division does not require prosecution or limit the prosecutor’s discretion. A referral does not establish guilt. A declination is not reviewable and does not bar a later prosecution, a private complaint under section 2935.09 of the Revised Code, or any civil remedy.

Sec. 3109.03. When ~~husband and wife~~ the parents of a child are living separate and apart from each other, ~~or~~ are divorced, or were never married to each other, and the question as to the parental rights and responsibilities for the care of their children and the place of residence and legal custodian of their children is brought before a court of competent jurisdiction, they shall stand upon an equality as to the parental rights and responsibilities for the care of their children and the place of residence and legal custodian of their children, so far as parenthood is involved. A court shall not prefer either parent because of the parent's sex or because the parents were or were not married to each other.

Sec. 3109.04. (A) In any divorce, legal separation, or annulment proceeding and in any proceeding pertaining to the allocation of parental rights and responsibilities for the care of a child, upon hearing the testimony of either or both parents and considering any mediation report filed pursuant to section 3109.052 of the Revised Code and in accordance with sections 3127.01 to 3127.53 of the Revised Code, the court shall allocate the parental rights and responsibilities for the care of the minor children of the marriage. The court shall make the allocation under section 3109.044 of the Revised Code, which controls over divisions (A)(1), (A)(2), (D)(1), and (G) of this section to the extent they conflict. Subject to division (D)(2)

of this section, the court may allocate the parental rights and responsibilities for the care of the children in either of the following ways:

(1) If neither parent files a pleading or motion in accordance with division (G) of this section, if at least one parent files a pleading or motion under that division but no parent who filed a pleading or motion under that division also files a plan for shared parenting, or if at least one parent files both a pleading or motion and a shared parenting plan under that division but no plan for shared parenting is in the best interest of the children, the court, in a manner consistent with the best interest of the children, shall allocate the parental rights and responsibilities for the care of the children primarily to one of the parents, designate that parent as the residential parent and the legal custodian of the child, and divide between the parents the other rights and responsibilities for the care of the children, including, but not limited to, the responsibility to provide support for the children and the right of the parent who is not the residential parent to have continuing contact with the children.

(2) If at least one parent files a pleading or motion in accordance with division (G) of this section and a plan for shared parenting pursuant to that division and if a plan for shared parenting is in the best interest of the children and is

approved by the court in accordance with division (D)(1) of this section, the court may allocate the parental rights and responsibilities for the care of the children to both parents and issue a shared parenting order requiring the parents to share all or some of the aspects of the physical and legal care of the children in accordance with the approved plan for shared parenting. If the court issues a shared parenting order under this division and it is necessary for the purpose of receiving public assistance, the court shall designate which one of the parents' residences is to serve as the child's home. The child support obligations of the parents under a shared parenting order issued under this division shall be determined in accordance with Chapters 3119., 3121., 3123., and 3125. of the Revised Code.

(B)(1) When making the allocation of the parental rights and responsibilities for the care of the children under this section in an original proceeding or in any proceeding for modification of a prior order of the court making the allocation, the court shall take into account that which would be in the best interest of the children. In determining the child's best interest for purposes of making its allocation of the parental rights and responsibilities for the care of the child and for purposes of resolving any issues related to the making of that allocation, the court, in its discretion, may

and, upon the request of either party, shall interview in chambers any or all of the involved children regarding their wishes and concerns with respect to the allocation.

(2) If the court interviews any child pursuant to division (B)(1) of this section, all of the following apply:

(a) The court, in its discretion, may and, upon the motion of either parent, shall appoint a guardian ad litem for the child.

(b) The court first shall determine the reasoning ability of the child. If the court determines that the child does not have sufficient reasoning ability to express the child’s wishes and concern with respect to the allocation of parental rights and responsibilities for the care of the child, it shall not determine the child’s wishes and concerns with respect to the allocation. If the court determines that the child has sufficient reasoning ability to express the child’s wishes or concerns with respect to the allocation, it then shall determine whether, because of special circumstances, it would not be in the best interest of the child to determine the child’s wishes and concerns with respect to the allocation. If the court determines that, because of special circumstances, it would not be in the best interest of the child to determine the child’s wishes and concerns with respect to the allocation, it shall not determine the child’s wishes and concerns with respect to the

allocation and shall enter its written findings of fact and opinion in the journal. If the court determines that it would be in the best interests of the child to determine the child’s wishes and concerns with respect to the allocation, it shall proceed to make that determination.

(c) The interview shall be conducted in chambers, and no person other than the child, the child’s attorney, the judge, any necessary court personnel, and, in the judge’s discretion, the attorney of each parent shall be permitted to be present in the chambers during the interview.

(3) No person shall obtain or attempt to obtain from a child a written or recorded statement or affidavit setting forth the child’s wishes and concerns regarding the allocation of parental rights and responsibilities concerning the child. No court, in determining the child’s best interest for purposes of making its allocation of the parental rights and responsibilities for the care of the child or for purposes of resolving any issues related to the making of that allocation, shall accept or consider a written or recorded statement or affidavit that purports to set forth the child’s wishes and concerns regarding those matters.

(C) Prior to trial, the court may cause an investigation to be made as to the character, family relations, past conduct, earning ability, and financial worth of each parent and may

order the parents and their minor children to submit to medical, psychological, and psychiatric examinations. The report of the investigation and examinations shall be made available to either parent or the parent’s counsel of record not less than five days before trial, upon written request. The report shall be signed by the investigator, and the investigator shall be subject to cross-examination by either parent concerning the contents of the report. The court may tax as costs all or any part of the expenses for each investigation.

If the court determines that either parent previously has been convicted of or pleaded guilty to any criminal offense involving any act that resulted in a child being a neglected child, that either parent previously has been determined to be the perpetrator of the neglectful act that is the basis of an adjudication that a child is a neglected child, or that there is reason to believe that either parent has acted in a manner resulting in a child being a neglected child, the court shall consider that fact against naming that parent the residential parent and against granting a shared parenting decree. When the court allocates parental rights and responsibilities for the care of children or determines whether to grant shared parenting in any proceeding, it shall consider whether either parent or any member of the household of either parent has been convicted of or pleaded guilty to a violation of section 2919.25 of the

Revised Code or a sexually oriented offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any sexually oriented offense or other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child. If the court determines that either parent has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code or a sexually oriented offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any sexually oriented offense or other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child, it may designate that parent as the residential parent and may issue a shared parenting decree or order only if

it determines that it is in the best interest of the child to name that parent the residential parent or to issue a shared parenting decree or order and it makes specific written findings of fact to support its determination.

(D)(1)(a) Upon the filing of a pleading or motion by either parent or both parents, in accordance with division (G) of this section, requesting shared parenting and the filing of a shared parenting plan in accordance with that division, the court shall comply with division (D)(1)(a)(i), (ii), or (iii) of this section, whichever is applicable:

(i) If both parents jointly make the request in their pleadings or jointly file the motion and also jointly file the plan, the court shall review the parents' plan to determine if it is in the best interest of the children. If the court determines that the plan is in the best interest of the children, the court shall approve it. If the court determines that the plan or any part of the plan is not in the best interest of the children, the court shall require the parents to make appropriate changes to the plan to meet the court's objections to it. If changes to the plan are made to meet the court's objections, and if the new plan is in the best interest of the children, the court shall approve the plan. If changes to the plan are not made to meet the court's objections, or if the parents attempt to make changes to the plan to meet the court's

objections, but the court determines that the new plan or any part of the new plan still is not in the best interest of the children, the court may reject the portion of the parents' pleadings or deny their motion requesting shared parenting of the children and proceed as if the request in the pleadings or the motion had not been made. The court shall not approve a plan under this division unless it determines that the plan is in the best interest of the children.

(ii) If each parent makes a request in the parent's pleadings or files a motion and each also files a separate plan, the court shall review each plan filed to determine if either is in the best interest of the children. If the court determines that one of the filed plans is in the best interest of the children, the court may approve the plan. If the court determines that neither filed plan is in the best interest of the children, the court may order each parent to submit appropriate changes to the parent's plan or both of the filed plans to meet the court's objections, or may select one of the filed plans and order each parent to submit appropriate changes to the selected plan to meet the court's objections. If changes to the plan or plans are submitted to meet the court's objections, and if any of the filed plans with the changes is in the best interest of the children, the court may approve the plan with the changes. If changes to the plan or plans are not

submitted to meet the court’s objections, or if the parents submit changes to the plan or plans to meet the court’s objections but the court determines that none of the filed plans with the submitted changes is in the best interest of the children, the court may reject the portion of the parents’ pleadings or deny their motions requesting shared parenting of the children and proceed as if the requests in the pleadings or the motions had not been made. If the court approves a plan under this division, either as originally filed or with submitted changes, or if the court rejects the portion of the parents’ pleadings or denies their motions requesting shared parenting under this division and proceeds as if the requests in the pleadings or the motions had not been made, the court shall enter in the record of the case findings of fact and conclusions of law as to the reasons for the approval or the rejection or denial. Division (D)(1)(b) of this section applies in relation to the approval or disapproval of a plan under this division.

(iii) If each parent makes a request in the parent’s pleadings or files a motion but only one parent files a plan, or if only one parent makes a request in the parent’s pleadings or files a motion and also files a plan, the court in the best interest of the children may order the other parent to file a plan for shared parenting in accordance with division (G) of this section. The court shall review each plan filed to

determine if any plan is in the best interest of the children. If the court determines that one of the filed plans is in the best interest of the children, the court may approve the plan. If the court determines that no filed plan is in the best interest of the children, the court may order each parent to submit appropriate changes to the parent’s plan or both of the filed plans to meet the court’s objections or may select one filed plan and order each parent to submit appropriate changes to the selected plan to meet the court’s objections. If changes to the plan or plans are submitted to meet the court’s objections, and if any of the filed plans with the changes is in the best interest of the children, the court may approve the plan with the changes. If changes to the plan or plans are not submitted to meet the court’s objections, or if the parents submit changes to the plan or plans to meet the court’s objections but the court determines that none of the filed plans with the submitted changes is in the best interest of the children, the court may reject the portion of the parents’ pleadings or deny the parents’ motion or reject the portion of the parents’ pleadings or deny their motions requesting shared parenting of the children and proceed as if the request or requests or the motion or motions had not been made. If the court approves a plan under this division, either as originally filed or with submitted changes, or if the court rejects the

portion of the pleadings or denies the motion or motions requesting shared parenting under this division and proceeds as if the request or requests or the motion or motions had not been made, the court shall enter in the record of the case findings of fact and conclusions of law as to the reasons for the approval or the rejection or denial. Division (D)(1)(b) of this section applies in relation to the approval or disapproval of a plan under this division.

(b) The approval of a plan under division (D)(1)(a)(ii) or (iii) of this section is discretionary with the court. The court shall not approve more than one plan under either division and shall not approve a plan under either division unless it determines that the plan is in the best interest of the children. If the court, under either division, does not determine that any filed plan or any filed plan with submitted changes is in the best interest of the children, the court shall not approve any plan.

(c) Whenever possible, the court shall require that a shared parenting plan approved under division (D)(1)(a)(i), (ii), or (iii) of this section ensure the opportunity for both parents to have frequent and continuing contact with the child, unless frequent and continuing contact with any parent would not be in the best interest of the child.

(d) If a court approves a shared parenting plan under division (D)(1)(a)(i), (ii), or (iii) of this section, the approved plan shall be incorporated into a final shared parenting decree granting the parents the shared parenting of the children. Any final shared parenting decree shall be issued at the same time as and shall be appended to the final decree of dissolution, divorce, annulment, or legal separation arising out of the action out of which the question of the allocation of parental rights and responsibilities for the care of the children arose.

No provisional shared parenting decree shall be issued in relation to any shared parenting plan approved under division (D)(1)(a)(i), (ii), or (iii) of this section. A final shared parenting decree issued under this division has immediate effect as a final decree on the date of its issuance, subject to modification or termination as authorized by this section.

(2) If the court finds, with respect to any child under eighteen years of age, that it is in the best interest of the child for neither parent to be designated the residential parent and legal custodian of the child, it may commit the child to a relative of the child or certify a copy of its findings, together with as much of the record and the further information, in narrative form or otherwise, that it considers necessary or as the juvenile court requests, to the juvenile court for

further proceedings, and, upon the certification, the juvenile court has exclusive jurisdiction.

(E)(1)(a) The court shall not modify a prior decree allocating parental rights and responsibilities for the care of children unless it finds, based on facts that have arisen since the prior decree or that were unknown to the court at the time of the prior decree, that a change has occurred in the circumstances of the child, the child’s residential parent, or either of the parents subject to a shared parenting decree, and that the modification is necessary to serve the best interest of the child. In applying these standards, the court shall retain the residential parent designated by the prior decree or the prior shared parenting decree, unless a modification is in the best interest of the child and one of the following applies:

(i) The residential parent agrees to a change in the residential parent or both parents under a shared parenting decree agree to a change in the designation of residential parent.

(ii) The child, with the consent of the residential parent or of both parents under a shared parenting decree, has been integrated into the family of the person seeking to become the residential parent.

(iii) The harm likely to be caused by a change of environment is outweighed by the advantages of the change of environment to the child.

(b) One or both of the parents under a prior decree allocating parental rights and responsibilities for the care of children that is not a shared parenting decree may file a motion requesting that the prior decree be modified to give both parents shared rights and responsibilities for the care of the children. The motion shall include both a request for modification of the prior decree and a request for a shared parenting order that complies with division (G) of this section. Upon the filing of the motion, if the court determines that a modification of the prior decree is authorized under division (E)(1)(a) of this section, the court may modify the prior decree to grant a shared parenting order, provided that the court shall not modify the prior decree to grant a shared parenting order unless the court complies with divisions (A) and (D)(1) of this section and, in accordance with those divisions, approves the submitted shared parenting plan and determines that shared parenting would be in the best interest of the children.

(c) Notwithstanding division (E)(1)(a) of this section, a parent who is not a residential parent and legal custodian under a prior decree or order, or under former division (A) of section 3109.042 of the Revised Code, may file a motion requesting that

both parents be made residential parents and legal custodians. The motion need not show a change in circumstances or include a plan. After notice and an opportunity for hearing, the court shall grant the motion unless it finds by a preponderance of the evidence any of the following:

(i) The moving parent has a history of physical violence or abuse against the child, the other parent, or a member of either household that warrants restricting the moving parent's legal status. The history may be shown by a conviction or guilty plea, an adjudication, a protection order issued after a full hearing, or evidence in the proceeding on the motion.

(ii) The moving parent presents an immediate threat of physical harm to the child or the other parent.

(iii) The moving parent is barred by division (D) of section 3109.042 or by section 3109.42 of the Revised Code.

If the court grants the motion, it shall issue a shared parenting decree under which both parents are residential parents and legal custodians and major decisions are made jointly. The parenting time schedule, child support order, school placement, and every other term of the prior order remain in effect until a court changes them. Equal status gives no right to time outside the existing schedule.

The first motion to modify parenting time that the restored parent files with or after a motion under this division shall be

decided under section 3109.044 of the Revised Code. No change in circumstances is required. If the court denies a motion under this division, the parent may not file another for twelve months unless circumstances have materially changed.

(2) In addition to a modification authorized under division (E)(1) of this section:

(a) Both parents under a shared parenting decree jointly may modify the terms of the plan for shared parenting approved by the court and incorporated by it into the shared parenting decree. Modifications under this division may be made at any time. The modifications to the plan shall be filed jointly by both parents with the court, and the court shall include them in the plan, unless they are not in the best interest of the children. If the modifications are not in the best interests of the children, the court, in its discretion, may reject the modifications or make modifications to the proposed modifications or the plan that are in the best interest of the children. Modifications jointly submitted by both parents under a shared parenting decree shall be effective, either as originally filed or as modified by the court, upon their inclusion by the court in the plan. Modifications to the plan made by the court shall be effective upon their inclusion by the court in the plan.

(b) The court may modify the terms of the plan for shared parenting approved by the court and incorporated by it into the shared parenting decree upon its own motion at any time if the court determines that the modifications are in the best interest of the children or upon the request of one or both of the parents under the decree. Modifications under this division may be made at any time. The court shall not make any modification to the plan under this division, unless the modification is in the best interest of the children.

(c) The court may terminate a prior final shared parenting decree that includes a shared parenting plan approved under division (D)(1)(a)(i) of this section upon the request of one or both of the parents or whenever it determines that shared parenting is not in the best interest of the children. The court may terminate a prior final shared parenting decree that includes a shared parenting plan approved under division (D)(1)(a)(ii) or (iii) of this section if it determines, upon its own motion or upon the request of one or both parents, that shared parenting is not in the best interest of the children. If modification of the terms of the plan for shared parenting approved by the court and incorporated by it into the final shared parenting decree is attempted under division (E)(2)(a) of this section and the court rejects the modifications, it may terminate the final shared parenting decree if it determines

that shared parenting is not in the best interest of the children.

(d) Upon the termination of a prior final shared parenting decree under division (E)(2)(c) of this section, the court shall proceed and issue a modified decree for the allocation of parental rights and responsibilities for the care of the children under the standards applicable under divisions (A), (B), and (C) of this section as if no decree for shared parenting had been granted and as if no request for shared parenting ever had been made.

(F)(1) In determining the best interest of a child pursuant to this section, whether on an original decree allocating parental rights and responsibilities for the care of children or a modification of a decree allocating those rights and responsibilities, the court shall consider all relevant factors, including, but not limited to:

(a) The wishes of the child’s parents regarding the child’s care;

(b) If the court has interviewed the child in chambers pursuant to division (B) of this section regarding the child’s wishes and concerns as to the allocation of parental rights and responsibilities concerning the child, the wishes and concerns of the child, as expressed to the court;

(c) The child’s interaction and interrelationship with the child’s parents, siblings, and any other person who may significantly affect the child’s best interest;

(d) The child’s adjustment to the child’s home, school, and community;

(e) The mental and physical health of all persons involved in the situation;

(f) The parent more likely to honor and facilitate court-approved parenting time rights or visitation and companionship rights;

(g) Whether either parent has failed to make all child support payments, including all arrearages, that are required of that parent pursuant to a child support order under which that parent is an obligor;

(h) Whether either parent or any member of the household of either parent previously has been convicted of or pleaded guilty to any criminal offense involving any act that resulted in a child being an abused child or a neglected child; whether either parent, in a case in which a child has been adjudicated an abused child or a neglected child, previously has been determined to be the perpetrator of the abusive or neglectful act that is the basis of an adjudication; whether either parent or any member of the household of either parent previously has been convicted of or pleaded guilty to a violation of section

2919.25 of the Revised Code or a sexually oriented offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the current proceeding; whether either parent or any member of the household of either parent previously has been convicted of or pleaded guilty to any offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the current proceeding and caused physical harm to the victim in the commission of the offense; and whether there is reason to believe that either parent has acted in a manner resulting in a child being an abused child or a neglected child;

(i) Whether the residential parent or one of the parents subject to a shared parenting decree has continuously and willfully denied the other parent’s right to parenting time in accordance with an order of the court;

(j) Whether either parent has established a residence, or is planning to establish a residence, outside this state.

(2) In determining whether shared parenting is in the best interest of the children, the court shall consider all relevant factors, including, but not limited to, the factors enumerated in division (F)(1) of this section, the factors enumerated in section 3119.23 of the Revised Code, and all of the following factors:

(a) The ability of the parents to cooperate and make decisions jointly, with respect to the children;

(b) The ability of each parent to encourage the sharing of love, affection, and contact between the child and the other parent;

(c) Any history of, or potential for, child abuse, spouse abuse, other domestic violence, or parental kidnapping by either parent;

(d) The geographic proximity of the parents to each other, as the proximity relates to the practical considerations of shared parenting;

(e) The recommendation of the guardian ad litem of the child, if the child has a guardian ad litem.

(3) When allocating parental rights and responsibilities for the care of children, the court shall not give preference to a parent because of that parent’s financial status or condition.

(G) Either parent or both parents of any children may file a pleading or motion with the court requesting the court to grant both parents shared parental rights and responsibilities for the care of the children in a proceeding held pursuant to division (A) of this section. If a pleading or motion requesting shared parenting is filed, the parent or parents filing the pleading or motion also shall file with the court a plan for the exercise of shared parenting by both parents. If each parent

files a pleading or motion requesting shared parenting but only one parent files a plan or if only one parent files a pleading or motion requesting shared parenting and also files a plan, the other parent as ordered by the court shall file with the court a plan for the exercise of shared parenting by both parents. The plan for shared parenting shall be filed with the petition for dissolution of marriage, if the question of parental rights and responsibilities for the care of the children arises out of an action for dissolution of marriage, or, in other cases, at a time at least thirty days prior to the hearing on the issue of the parental rights and responsibilities for the care of the children. A plan for shared parenting shall include provisions covering all factors that are relevant to the care of the children, including, but not limited to, provisions covering factors such as physical living arrangements, child support obligations, provision for the children’s medical and dental care, school placement, and the parent with which the children will be physically located during legal holidays, school holidays, and other days of special importance.

(H) If an appeal is taken from a decision of a court that grants or modifies a decree allocating parental rights and responsibilities for the care of children, the court of appeals shall give the case calendar priority and handle it expeditiously.

(I)(1) Upon receipt of an order for active military service in the uniformed services, a parent who is subject to an order allocating parental rights and responsibilities or in relation to whom an action to allocate parental rights and responsibilities is pending and who is ordered for active military service shall notify the other parent who is subject to the order or in relation to whom the case is pending of the order for active military service within three days of receiving the military service order.

(2) On receipt of the notice described in division (I)(1) of this section, either parent may apply to the court for a hearing to expedite an allocation or modification proceeding so that the court can issue an order before the parent’s active military service begins. The application shall include the date on which the active military service begins.

The court shall schedule a hearing upon receipt of the application and hold the hearing not later than thirty days after receipt of the application, except that the court shall give the case calendar priority and handle the case expeditiously if exigent circumstances exist in the case.

The court shall not modify a prior decree allocating parental rights and responsibilities unless the court determines that there has been a change in circumstances of the child, the child’s residential parent, or either of the parents subject to

a shared parenting decree, and that modification is necessary to serve the best interest of the child. The court shall not find past, present, or possible future active military service in the uniformed services to constitute a change in circumstances justifying modification of a prior decree pursuant to division (E) of this section. The court shall make specific written findings of fact to support any modification under this division.

(3) Nothing in division (I) of this section shall prevent a court from issuing a temporary order allocating or modifying parental rights and responsibilities for the duration of the parent’s active military service. A temporary order shall specify whether the parent’s active military service is the basis of the order and shall provide for termination of the temporary order and resumption of the prior order within ten days after receipt of notice pursuant to division (I)(5) of this section, unless the other parent demonstrates that resumption of the prior order is not in the child’s best interest.

(4) At the request of a parent who is ordered for active military service in the uniformed services and who is a subject of a proceeding pertaining to a temporary order for the allocation or modification of parental rights and responsibilities, the court shall permit the parent to participate in the proceeding and present evidence by electronic

means, including communication by telephone, video, or internet to the extent permitted by the rules of the supreme court of Ohio.

(5) A parent who is ordered for active military service in the uniformed services and who is a subject of a proceeding pertaining to the allocation or modification of parental rights and responsibilities shall provide written notice to the court, child support enforcement agency, and the other parent of the date of termination of the parent’s active military service not later than thirty days after the date on which the service ends.

(J) As used in this section:

(1) “Abused child” has the same meaning as in section 2151.031 of the Revised Code.

(2) “Active military service” means service by a member of the uniformed services in compliance with military orders to report for combat operations, contingency operations, peacekeeping operations, a remote tour of duty, or other active service for which the member is required to report unaccompanied by any family member, including any period of illness, recovery from injury, leave, or other lawful absence during that operation, duty, or service.

(3) “Neglected child” has the same meaning as in section 2151.03 of the Revised Code.

(4) “Sexually oriented offense” has the same meaning as in section 2950.01 of the Revised Code.

(5) “Uniformed services” means the United States armed forces, the army national guard, and the air national guard or any reserve component thereof, or the commissioned corps of the United States public health service.

(K) As used in the Revised Code, “shared parenting” means that the parents share, in the manner set forth in the plan for shared parenting that is approved by the court under division (D)(1) and described in division (L)(6) of this section, all or some of the aspects of physical and legal care of their children.

(L) For purposes of the Revised Code:

(1) A parent who is granted the care, custody, and control of a child under an order that was issued pursuant to this section prior to April 11, 1991, and that does not provide for shared parenting has “custody of the child” and “care, custody, and control of the child” under the order, and is the “residential parent,” the “residential parent and legal custodian,” or the “custodial parent” of the child under the order.

(2) A parent who primarily is allocated the parental rights and responsibilities for the care of a child and who is designated as the residential parent and legal custodian of the

child under an order that is issued pursuant to this section on or after April 11, 1991, and that does not provide for shared parenting has “custody of the child” and “care, custody, and control of the child” under the order, and is the “residential parent,” the “residential parent and legal custodian,” or the “custodial parent” of the child under the order.

(3) A parent who is not granted custody of a child under an order that was issued pursuant to this section prior to April 11, 1991, and that does not provide for shared parenting is the “parent who is not the residential parent,” the “parent who is not the residential parent and legal custodian,” or the “noncustodial parent” of the child under the order.

(4) A parent who is not primarily allocated the parental rights and responsibilities for the care of a child and who is not designated as the residential parent and legal custodian of the child under an order that is issued pursuant to this section on or after April 11, 1991, and that does not provide for shared parenting is the “parent who is not the residential parent,” the “parent who is not the residential parent and legal custodian,” or the “noncustodial parent” of the child under the order.

(5) Unless the context clearly requires otherwise, if an order is issued by a court pursuant to this section and the order provides for shared parenting of a child, both parents have “custody of the child” or “care, custody, and control of

the child” under the order, to the extent and in the manner specified in the order.

(6) Unless the context clearly requires otherwise and except as otherwise provided in the order, if an order is issued by a court pursuant to this section and the order provides for shared parenting of a child, each parent, regardless of where the child is physically located or with whom the child is residing at a particular point in time, as specified in the order, is the “residential parent,” the “residential parent and legal custodian,” or the “custodial parent” of the child.

(7) Unless the context clearly requires otherwise and except as otherwise provided in the order, a designation in the order of a parent as the residential parent for the purpose of determining the school the child attends, as the custodial parent for purposes of claiming the child as a dependent pursuant to section 152(e) of the “Internal Revenue Code of 1986,” 100 Stat. 2085, 26 U.S.C.A. 1, as amended, or as the residential parent for purposes of receiving public assistance pursuant to division (A)(2) of this section, does not affect the designation pursuant to division (L)(6) of this section of each parent as the “residential parent,” the “residential parent and legal custodian,” or the “custodial parent” of the child.

(M) The court shall require each parent of a child to file an affidavit attesting as to whether the parent, and the members

of the parent's household, have been convicted of or pleaded guilty to any of the offenses identified in divisions (C) and (F)(1)(h) of this section.

Sec. 3109.042. ~~(A) An unmarried female who gives birth to a child is the sole residential parent and legal custodian of the child until a court of competent jurisdiction issues an order designating another person as the residential parent and legal custodian. A court designating the residential parent and legal custodian of a child described in this section shall treat the mother and father as standing upon an equality when making the designation.~~

(A) If a child's parents were not married to each other when the child was born, the mother is the sole residential parent and legal custodian of the child until the father's parent and child relationship with the child is established. From then on, both parents are residential parents and legal custodians, with equal rights, until a court allocates parental rights and responsibilities. The relationship is established when an acknowledgment of paternity becomes final under section 2151.232, 3111.25, or 3111.821 of the Revised Code or parentage is determined under Chapter 3111. of the Revised Code. No court action is needed to obtain this status.

(B) Division (A) of this section confers legal status only. It does not create a parenting time schedule. Either parent may ask a court for one.

(C) An order allocating parental rights and responsibilities or granting parenting time that was in effect on the effective date of this amendment continues to govern. A parent may seek equal status under division (E)(1)(c) of section 3109.04 of the Revised Code.

~~(B)~~ (D) Notwithstanding division (A) of this section, ~~an unmarried female~~ a parent who has been convicted of or pleaded guilty to rape or sexual battery and has been declared under section 3109.501 of the Revised Code to be the parent of a child born as a result of rape or sexual battery shall not be a residential parent and legal custodian of that child.

Sec. 3109.043. (A) In any proceeding pertaining to the allocation of parental rights and responsibilities for the care of a child, when requested in the complaint, answer, or counterclaim, or by motion served with the pleading, upon satisfactory proof by affidavit duly filed with the clerk of the court, the court, without oral hearing and for good cause shown, may make a temporary order regarding the allocation of parental rights and responsibilities for the care of the child while the action is pending.

(B) If a parent and child relationship has not already been established pursuant to section 3111.02 of the Revised Code, the court may take into consideration when determining whether to award parenting time, visitation rights, or temporary custody to a putative father that the putative father is named on the birth record of the child, the child has the putative father's surname, or a clear pattern of a parent and child relationship between the child and the putative father exists.

(C) If a temporary order is made without an oral hearing, the court, on a party's written request, shall hold an oral hearing within twenty-eight days after the request unless good cause is shown.

(D) A temporary order, its length, and the child's adjustment during it create no presumption or inference in a later order and are not by themselves a change in circumstances.

Sec. 3109.044. (A) When a court first allocates parental rights and responsibilities for a child, including by a temporary order or an order under section 3109.12 of the Revised Code, there is a presumption that shared parenting with substantially equal parenting time is in the child's best interest. "Substantially equal" means that each parent has at least forty-five per cent of overnights, or the equivalent, over a year.

(B) If the presumption is not rebutted, the court shall issue a shared parenting decree under which both parents are residential parents and legal custodians, major decisions are made jointly, and parenting time is substantially equal. No party is required to file a plan. If no plan is filed, the court shall issue one.

(C) The presumption does not apply in any of the following circumstances:

(1) The parents agree. The court shall approve the agreement unless it finds that the agreement is not in the child's best interest.

(2) As to a parent against whom a protection order was issued after a full hearing under section 2151.34, 2903.214, or 3113.31 of the Revised Code to protect the other parent or the child, while the order is in effect;

(3) As to a parent described in the second paragraph of division (C) of section 3109.04 of the Revised Code.

An ex parte protection order, or a consent agreement without findings, governs according to its terms while it is in effect but does not by itself rebut the presumption.

(D) The presumption is rebutted only if the court finds, by a preponderance of the evidence, one or more of the following:

(1) Substantially equal time would endanger the child's physical or emotional welfare, including because of abuse,

neglect, domestic violence, or a parent’s substance abuse or impairment.

(2) A parent is unable or unwilling to exercise substantially equal time.

(3) Distance or the child’s school attendance makes substantially equal time impracticable.

(4) A parent has repeatedly denied the other parent court-ordered parenting time without lawful excuse.

(5) A child has stated a reasoned preference for a different schedule that the court follows under division (F) of this section.

None of the following is a ground for rebuttal: conflict between the parents; one parent’s objection; a lack of cooperation caused by the parent relying on it; or an allegation the court has not found true. When the presumption applies, the factors in division (F)(1) of section 3109.04 of the Revised Code shall be considered only as they bear on the grounds listed in this division.

(E) If the presumption is rebutted, the court shall do all of the following:

(1) State in writing the facts establishing the ground;

(2) Unless the parents agree, order a schedule that maximizes each parent’s time with the child, consistent with the child’s welfare and division (F) of this section;

(3) Not give a parent fewer than ninety overnights a year, or the equivalent, unless the parents agree, that parent asks for less, distance makes it impracticable, the court follows a child's preference under division (F) of this section, or the court finds by a preponderance of the evidence that more time would endanger the child's physical or emotional welfare. In the last case, the court shall order the least restrictive arrangement that protects the child and state its reasons in writing.

Ninety overnights is a floor, never a standard or target. That a parent receives fewer than ninety overnights is not, by itself, evidence of an offense under section 2919.23 of the Revised Code.

(F) A child age twelve or older may state a reasoned preference about parenting time in an interview under division (B) of section 3109.04 of the Revised Code. The court shall follow the preference unless it finds in writing that following it would endanger the child or be impracticable, or that the preference is not the child's own reasoned view. No child shall be required to state a preference. The court, not the child, decides the allocation.

(G) The court may find the presumption rebutted as to parenting time but not as to joint decision-making, or the reverse. Each parent makes day-to-day and emergency decisions

while the child is with that parent. If the parents cannot agree on a major decision, either parent may ask the court to decide it, and the existing arrangement continues until the court does so.

(H) A court may restrict a parent's rights or parenting time to protect the child or a parent from physical harm, abuse, or domestic violence on a finding by a preponderance of the evidence. A criminal charge or conviction is not required.

Sec. 3109.045. (A) An order allocating parental rights and responsibilities or providing for parenting time remains in effect until a court changes it, except that the parents may agree to a particular deviation. The agreement does not change the order.

(B) No person other than a court may reduce, suspend, supervise, condition, or substantively change parenting time or parental rights and responsibilities. This division applies to a guardian ad litem, parenting coordinator, mediator, evaluator, counselor, therapist, law enforcement officer, and any employee of a public children services agency or family support enforcement agency. Those persons may investigate, recommend, mediate, assist, or carry out an order. A court shall not delegate that authority to anyone who is not a judge or magistrate. An order provision that purports to do so is unenforceable.

(C) A guardian ad litem's recommendation is evidence only. A party may call the guardian ad litem as a witness and cross-examine the guardian ad litem about the report and the basis for any recommendation.

(D) A parenting coordinator may decide disputes about carrying out an order within the authority given by the appointing order but may not make a substantive change. On a parent's objection, the court shall review the decision independently.

(E) A public children services agency safety plan restricts court-ordered parenting time only if the parent agrees in writing or a court orders it.

(F) Nothing in sections 3109.044 to 3109.047 of the Revised Code limits a protection order, taking a child into custody under section 2151.31 of the Revised Code, an emergency or ex parte court order, or action reasonably necessary to prevent imminent physical harm to a person.

Sec. 3109.046. (A) As used in this section:

(1) "Restriction" means a court order, or part of one, that suspends, requires supervision of, or materially reduces a parent's parenting time or parental rights and responsibilities because of an allegation of abuse, neglect, domestic violence, or other misconduct by that parent.

(2) An allegation is "resolved" when a court, after a hearing at which the restricted parent could present evidence, finds whether it is true. The finding may come from the court that issued the restriction, an adjudication under Chapter 2151. of the Revised Code, a full hearing on a protection order, or a criminal conviction. An agency determination, a charging decision, a dismissal, or an acquittal does not by itself resolve an allegation.

(B) An allegation, report, or filing does not by itself change a parenting order. Only a court order based on evidence may impose a restriction.

(C) On the restricted parent's request, the court shall hold an evidentiary hearing on the allegation within ninety days unless good cause is shown. A pending investigation or criminal case, or the absence of a charge, does not by itself prevent the court from deciding whether the allegation is true.

(D) A restriction based on an unresolved allegation ends thirty-six months after it first took effect, subject to one extension. All of the following apply:

(1) If the allegation is unresolved at thirty months, the court shall set it for hearing on its own motion.

(2) Before the thirty-six months end, the court may extend the period once, by not more than forty-five days, on written findings that additional time is genuinely necessary.

(3) Delay requested or caused by the restricted parent is not counted.

(4) All allegations about conduct that occurred before the restriction took effect share its period, however later described. Only conduct after that date may support a new restriction with a new period.

(5) When the restriction ends, the order that applied before it resumes. If there was no such order, the court shall issue a parenting time order under section 3109.044 of the Revised Code within twenty-eight days, without relying on the unresolved allegation.

(E) If the court finds the allegation true, it may continue, change, or end the restriction in the child's best interest. If it finds the allegation not true, the restriction ends.

(F) An allegation or report made in good faith shall not be held against the person who made it. That an allegation was unsubstantiated, uncharged, dismissed, acquitted, mistaken, or not proven does not by itself establish that it was knowingly false. A parent's good-faith action to protect the child or the parent from abuse or domestic violence shall not be counted against that parent under division (F)(1)(f) of section 3109.04 or division (D)(10) of section 3109.051 of the Revised Code.

(G) If the court finds by clear and convincing evidence that a parent made an allegation that was materially false, that the parent knew was false, and that the parent made in order to interfere with the other parent's relationship with the child, the court shall order compensatory parenting time for the time lost and the parent's payment of the other parent's reasonable attorney's fees and costs. The finding is a change in circumstances for purposes of division (E)(1)(a) of section 3109.04 of the Revised Code.

(H) This section does not govern a protection order proceeding or a case under Chapter 2151. of the Revised Code, but it does govern a restriction in a case under this chapter that relies on either of them. This section does not limit section 2151.421 of the Revised Code.

Sec. 3109.047. (A) A parent may ask the family support enforcement agency for help enforcing a parenting time order. Use of the agency is optional, and a parent may instead bring a contempt action directly. The agency does not decide custody, status, safety, or contempt and may not change an order.

(B) A parent may file a complaint with the agency of the county where the child resides, on a form prescribed by the department of job and family services, within sixty days after court-ordered parenting time was missed. No fee shall be charged. A dispute within the authority of an appointed

parenting coordinator shall first be submitted to the coordinator, and the agency shall proceed if the dispute is not resolved within fourteen days. This requirement does not apply to a denial of fourteen or more consecutive days or to concealment or removal of the child.

(C) Within fourteen days after receiving a complaint, the agency shall obtain the order from the court and send the complaint to the other parent, who has fourteen days to respond. The agency may contact both parents and offer a conference.

(D) Within forty-five days after the complaint is filed, the agency shall issue a written determination. If the order clearly provides the time, the time was not provided, and the other parent has shown no lawful excuse under division (K)(3) of section 3109.051 of the Revised Code, the agency shall find that parenting time was denied. A parent who does not respond has shown no excuse. For each denial, the agency shall specify compensatory parenting time of the same type and duration, to be taken within one year at times the wronged parent chooses on seven days' notice. Otherwise, the agency shall find no denial.

(E) If the order is unclear as to the time in question, or a parent asserts in good faith that the parenting time would endanger the child, the agency shall make no determination. It shall file the complaint and its record with the court, which

shall treat the filing as a contempt action under division (K) of section 3109.051 of the Revised Code.

(F) The agency shall mail the determination to both parents, send it by any electronic means a parent has provided, and file it with the court. Either parent may object by filing with the court within fourteen days. The court shall hear the objection within twenty-eight days and decide the matter anew. If no objection is filed, the court shall enter the determination as its order unless it is contrary to law. An entered determination is enforceable like any other order.

(G) The agency shall keep one enforcement record for each parenting time order, showing the time ordered and the time received as reported in each complaint, and every response, determination, objection, outcome, and compensatory period. The agency shall file the record in any court proceeding about parenting time or parental rights and responsibilities under that order.

(H) The agency shall refer the matter to the prosecutor under division (F) of section 2919.23 of the Revised Code, and may bring a contempt action under section 2705.031 of the Revised Code on the wronged parent’s behalf, if any of the following applies:

(1) Within twelve months, three denials by the same parent under the same order have been entered or found in contempt.

(2) A denial lasted fourteen or more consecutive days.

(3) The child was concealed or removed from this state.

(I) This section creates no fine, fee, penalty, or damages and does not limit any remedy otherwise available by law.

Sec. 3109.051. (A) If a divorce, dissolution, legal separation, or annulment proceeding involves a child and if the court has not issued a shared parenting decree, the court shall consider any mediation report filed pursuant to section 3109.052 of the Revised Code and, in accordance with division (C) of this section, shall make a just and reasonable order or decree permitting each parent who is not the residential parent to have parenting time with the child at the time and under the conditions that the court directs, unless the court determines that it would not be in the best interest of the child to permit that parent to have parenting time with the child and includes in the journal its findings of fact and conclusions of law. Whenever possible, the order or decree permitting the parenting time shall ensure the opportunity for both parents to have frequent and continuing contact with the child, unless frequent and continuing contact by either parent with the child would not be in the best interest of the child. The court shall include in its final decree a specific schedule of parenting time for that parent. Except as provided in division (E)(6) of section 3113.31 of the Revised Code, if the court, pursuant to this section,

grants parenting time to a parent or companionship or visitation rights to any other person with respect to any child, it shall not require the public children services agency to provide supervision of or other services related to that parent’s exercise of parenting time or that person’s exercise of companionship or visitation rights with respect to the child. This section does not limit the power of a juvenile court pursuant to Chapter 2151. of the Revised Code to issue orders with respect to children who are alleged to be abused, neglected, or dependent children or to make dispositions of children who are adjudicated abused, neglected, or dependent children or of a common pleas court to issue orders pursuant to section 3113.31 of the Revised Code.

(B)(1) In a divorce, dissolution of marriage, legal separation, annulment, or child support proceeding that involves a child, the court may grant reasonable companionship or visitation rights to any grandparent, any person related to the child by consanguinity or affinity, or any other person other than a parent, if all of the following apply:

(a) The grandparent, relative, or other person files a motion with the court seeking companionship or visitation rights.

(b) The court determines that the grandparent, relative, or other person has an interest in the welfare of the child.

(c) The court determines that the granting of the companionship or visitation rights is in the best interest of the child.

(2) A motion may be filed under division (B)(1) of this section during the pendency of the divorce, dissolution of marriage, legal separation, annulment, or child support proceeding or, if a motion was not filed at that time or was filed at that time and the circumstances in the case have changed, at any time after a decree or final order is issued in the case.

(C) When determining whether to grant parenting time rights to a parent pursuant to this section or section 3109.12 of the Revised Code or to grant companionship or visitation rights to a grandparent, relative, or other person pursuant to this section or section 3109.11 or 3109.12 of the Revised Code, when establishing a specific parenting time or visitation schedule, and when determining other parenting time matters under this section or section 3109.12 of the Revised Code or visitation matters under this section or section 3109.11 or 3109.12 of the Revised Code, the court shall consider any mediation report that is filed pursuant to section 3109.052 of the Revised Code and shall consider all other relevant factors, including, but not limited to, all of the factors listed in division (D) of this section. In considering the factors listed in division (D) of

this section for purposes of determining whether to grant parenting time or visitation rights, establishing a specific parenting time or visitation schedule, determining other parenting time matters under this section or section 3109.12 of the Revised Code or visitation matters under this section or under section 3109.11 or 3109.12 of the Revised Code, and resolving any issues related to the making of any determination with respect to parenting time or visitation rights or the establishment of any specific parenting time or visitation schedule, the court, in its discretion, may interview in chambers any or all involved children regarding their wishes and concerns. If the court interviews any child concerning the child’s wishes and concerns regarding those parenting time or visitation matters, the interview shall be conducted in chambers, and no person other than the child, the child’s attorney, the judge, any necessary court personnel, and, in the judge’s discretion, the attorney of each parent shall be permitted to be present in the chambers during the interview. No person shall obtain or attempt to obtain from a child a written or recorded statement or affidavit setting forth the wishes and concerns of the child regarding those parenting time or visitation matters. A court, in considering the factors listed in division (D) of this section for purposes of determining whether to grant any parenting time or visitation rights,

establishing a parenting time or visitation schedule, determining other parenting time matters under this section or section 3109.12 of the Revised Code or visitation matters under this section or under section 3109.11 or 3109.12 of the Revised Code, or resolving any issues related to the making of any determination with respect to parenting time or visitation rights or the establishment of any specific parenting time or visitation schedule, shall not accept or consider a written or recorded statement or affidavit that purports to set forth the child’s wishes or concerns regarding those parenting time or visitation matters.

(D) In determining whether to grant parenting time to a parent pursuant to this section or section 3109.12 of the Revised Code or companionship or visitation rights to a grandparent, relative, or other person pursuant to this section or section 3109.11 or 3109.12 of the Revised Code, in establishing a specific parenting time or visitation schedule, and in determining other parenting time matters under this section or section 3109.12 of the Revised Code or visitation matters under this section or section 3109.11 or 3109.12 of the Revised Code, the court shall consider all of the following factors:

(1) The prior interaction and interrelationships of the child with the child’s parents, siblings, and other persons

related by consanguinity or affinity, and with the person who requested companionship or visitation if that person is not a parent, sibling, or relative of the child;

(2) The geographical location of the residence of each parent and the distance between those residences, and if the person is not a parent, the geographical location of that person’s residence and the distance between that person’s residence and the child’s residence;

(3) The child’s and parents’ available time, including, but not limited to, each parent’s employment schedule, the child’s school schedule, and the child’s and the parents’ holiday and vacation schedule;

(4) The age of the child;

(5) The child’s adjustment to home, school, and community;

(6) If the court has interviewed the child in chambers, pursuant to division (C) of this section, regarding the wishes and concerns of the child as to parenting time by the parent who is not the residential parent or companionship or visitation by the grandparent, relative, or other person who requested companionship or visitation, as to a specific parenting time or visitation schedule, or as to other parenting time or visitation matters, the wishes and concerns of the child, as expressed to the court;

(7) The health and safety of the child;

(8) The amount of time that will be available for the child to spend with siblings;

(9) The mental and physical health of all parties;

(10) Each parent’s willingness to reschedule missed parenting time and to facilitate the other parent’s parenting time rights, and with respect to a person who requested companionship or visitation, the willingness of that person to reschedule missed visitation;

(11) In relation to parenting time, whether either parent previously has been convicted of or pleaded guilty to any criminal offense involving any act that resulted in a child being an abused child or a neglected child; whether either parent, in a case in which a child has been adjudicated an abused child or a neglected child, previously has been determined to be the perpetrator of the abusive or neglectful act that is the basis of the adjudication; and whether there is reason to believe that either parent has acted in a manner resulting in a child being an abused child or a neglected child;

(12) In relation to requested companionship or visitation by a person other than a parent, whether the person previously has been convicted of or pleaded guilty to any criminal offense involving any act that resulted in a child being an abused child or a neglected child; whether the person, in a case in which a child has been adjudicated an abused child or a neglected child,

previously has been determined to be the perpetrator of the abusive or neglectful act that is the basis of the adjudication; whether either parent previously has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the current proceeding; whether either parent previously has been convicted of an offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the current proceeding and caused physical harm to the victim in the commission of the offense; and whether there is reason to believe that the person has acted in a manner resulting in a child being an abused child or a neglected child;

(13) Whether the residential parent or one of the parents subject to a shared parenting decree has continuously and willfully denied the other parent’s right to parenting time in accordance with an order of the court;

(14) Whether either parent has established a residence or is planning to establish a residence outside this state;

(15) In relation to requested companionship or visitation by a person other than a parent, the wishes and concerns of the child’s parents, as expressed by them to the court;

(16) Any other factor in the best interest of the child.

(E) The remarriage of a residential parent of a child does not affect the authority of a court under this section to grant parenting time rights with respect to the child to the parent who is not the residential parent or to grant reasonable companionship or visitation rights with respect to the child to any grandparent, any person related by consanguinity or affinity, or any other person.

(F)(1) If the court, pursuant to division (A) of this section, denies parenting time to a parent who is not the residential parent or denies a motion for reasonable companionship or visitation rights filed under division (B) of this section and the parent or movant files a written request for findings of fact and conclusions of law, the court shall state in writing its findings of fact and conclusions of law in accordance with Civil Rule 52.

(2) On or before July 1, 1991, each court of common pleas, by rule, shall adopt standard parenting time guidelines. A court shall have discretion to deviate from its standard parenting time guidelines based upon factors set forth in division (D) of this section.

(G)(1) If the residential parent intends to move to a residence other than the residence specified in the parenting time order or decree of the court, the parent shall file a notice of intent to relocate with the court that issued the

order or decree. Except as provided in divisions (G)(2), (3), and (4) of this section, the court shall send a copy of the notice to the parent who is not the residential parent. Upon receipt of the notice, the court, on its own motion or the motion of the parent who is not the residential parent, may schedule a hearing with notice to both parents to determine whether it is in the best interest of the child to revise the parenting time schedule for the child.

(2) When a court grants parenting time rights to a parent who is not the residential parent, the court shall determine whether that parent has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child. If the court determines that that parent has not been so convicted and has not been determined to be the perpetrator of an abusive act that is the basis of a child abuse adjudication, the court shall

issue an order stating that a copy of any notice of relocation that is filed with the court pursuant to division (G)(1) of this section will be sent to the parent who is given the parenting time rights in accordance with division (G)(1) of this section.

If the court determines that the parent who is granted the parenting time rights has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child, it shall issue an order stating that that parent will not be given a copy of any notice of relocation that is filed with the court pursuant to division (G)(1) of this section unless the court determines that it is in the best interest of the children to give that parent a copy of the notice of relocation, issues an order stating that that parent will be given a copy of any notice of relocation filed pursuant to division (G)(1) of this section, and issues

specific written findings of fact in support of its determination.

(3) If a court, prior to April 11, 1991, issued an order granting parenting time rights to a parent who is not the residential parent and did not require the residential parent in that order to give the parent who is granted the parenting time rights notice of any change of address and if the residential parent files a notice of relocation pursuant to division (G)(1) of this section, the court shall determine if the parent who is granted the parenting time rights has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child. If the court determines that the parent who is granted the parenting time rights has not been so convicted and has not been determined to be the perpetrator of an abusive act that is the basis of a child abuse adjudication, the court shall issue

an order stating that a copy of any notice of relocation that is filed with the court pursuant to division (G)(1) of this section will be sent to the parent who is granted parenting time rights in accordance with division (G)(1) of this section.

If the court determines that the parent who is granted the parenting time rights has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child, it shall issue an order stating that that parent will not be given a copy of any notice of relocation that is filed with the court pursuant to division (G)(1) of this section unless the court determines that it is in the best interest of the children to give that parent a copy of the notice of relocation, issues an order stating that that parent will be given a copy of any notice of relocation filed pursuant to division (G)(1) of this section, and issues

specific written findings of fact in support of its determination.

(4) If a parent who is granted parenting time rights pursuant to this section or any other section of the Revised Code is authorized by an order issued pursuant to this section or any other court order to receive a copy of any notice of relocation that is filed pursuant to division (G)(1) of this section or pursuant to court order, if the residential parent intends to move to a residence other than the residence address specified in the parenting time order, and if the residential parent does not want the parent who is granted the parenting time rights to receive a copy of the relocation notice because the parent with parenting time rights has been convicted of or pleaded guilty to a violation of section 2919.25 of the Revised Code involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding, has been convicted of or pleaded guilty to any other offense involving a victim who at the time of the commission of the offense was a member of the family or household that is the subject of the proceeding and caused physical harm to the victim in the commission of the offense, or has been determined to be the perpetrator of the abusive act that is the basis of an adjudication that a child is an abused child, the residential parent may file a motion with the court

requesting that the parent who is granted the parenting time rights not receive a copy of any notice of relocation. Upon the filing of the motion, the court shall schedule a hearing on the motion and give both parents notice of the date, time, and location of the hearing. If the court determines that the parent who is granted the parenting time rights has been so convicted or has been determined to be the perpetrator of an abusive act that is the basis of a child abuse adjudication, the court shall issue an order stating that the parent who is granted the parenting time rights will not be given a copy of any notice of relocation that is filed with the court pursuant to division (G)(1) of this section or that the residential parent is no longer required to give that parent a copy of any notice of relocation unless the court determines that it is in the best interest of the children to give that parent a copy of the notice of relocation, issues an order stating that that parent will be given a copy of any notice of relocation filed pursuant to division (G)(1) of this section, and issues specific written findings of fact in support of its determination. If it does not so find, it shall dismiss the motion.

(H)(1) Subject to section 3125.16 and division (F) of section 3319.321 of the Revised Code, a parent of a child who is not the residential parent of the child is entitled to access, under the same terms and conditions under which access is

provided to the residential parent, to any record that is related to the child and to which the residential parent of the child legally is provided access, unless the court determines that it would not be in the best interest of the child for the parent who is not the residential parent to have access to the records under those same terms and conditions. If the court determines that the parent of a child who is not the residential parent should not have access to records related to the child under the same terms and conditions as provided for the residential parent, the court shall specify the terms and conditions under which the parent who is not the residential parent is to have access to those records, shall enter its written findings of facts and opinion in the journal, and shall issue an order containing the terms and conditions to both the residential parent and the parent of the child who is not the residential parent. The court shall include in every order issued pursuant to this division notice that any keeper of a record who knowingly fails to comply with the order or division (H) of this section is in contempt of court.

(2) Subject to section 3125.16 and division (F) of section 3319.321 of the Revised Code, subsequent to the issuance of an order under division (H)(1) of this section, the keeper of any record that is related to a particular child and to which the residential parent legally is provided access shall permit the

parent of the child who is not the residential parent to have access to the record under the same terms and conditions under which access is provided to the residential parent, unless the residential parent has presented the keeper of the record with a copy of an order issued under division (H)(1) of this section that limits the terms and conditions under which the parent who is not the residential parent is to have access to records pertaining to the child and the order pertains to the record in question. If the residential parent presents the keeper of the record with a copy of that type of order, the keeper of the record shall permit the parent who is not the residential parent to have access to the record only in accordance with the most recent order that has been issued pursuant to division (H)(1) of this section and presented to the keeper by the residential parent or the parent who is not the residential parent. Any keeper of any record who knowingly fails to comply with division (H) of this section or with any order issued pursuant to division (H)(1) of this section is in contempt of court.

(3) The prosecuting attorney of any county may file a complaint with the court of common pleas of that county requesting the court to issue a protective order preventing the disclosure pursuant to division (H)(1) or (2) of this section of any confidential law enforcement investigatory record. The court

shall schedule a hearing on the motion and give notice of the date, time, and location of the hearing to all parties.

(I) A court that issues a parenting time order or decree pursuant to this section or section 3109.12 of the Revised Code shall determine whether the parent granted the right of parenting time is to be permitted access, in accordance with section 5104.039 of the Revised Code, to any child care center that is, or that in the future may be, attended by the children with whom the right of parenting time is granted. Unless the court determines that the parent who is not the residential parent should not have access to the center to the same extent that the residential parent is granted access to the center, the parent who is not the residential parent and who is granted parenting time rights is entitled to access to the center to the same extent that the residential parent is granted access to the center. If the court determines that the parent who is not the residential parent should not have access to the center to the same extent that the residential parent is granted such access under section 5104.039 of the Revised Code, the court shall specify the terms and conditions under which the parent who is not the residential parent is to have access to the center, provided that the access shall not be greater than the access that is provided to the residential parent under section 5104.039 of the Revised Code, the court shall enter its written

findings of fact and opinions in the journal, and the court shall include the terms and conditions of access in the parenting time order or decree.

(J)(1) Subject to division (F) of section 3319.321 of the Revised Code, when a court issues an order or decree allocating parental rights and responsibilities for the care of a child, the parent of the child who is not the residential parent of the child is entitled to access, under the same terms and conditions under which access is provided to the residential parent, to any student activity that is related to the child and to which the residential parent of the child legally is provided access, unless the court determines that it would not be in the best interest of the child to grant the parent who is not the residential parent access to the student activities under those same terms and conditions. If the court determines that the parent of the child who is not the residential parent should not have access to any student activity that is related to the child under the same terms and conditions as provided for the residential parent, the court shall specify the terms and conditions under which the parent who is not the residential parent is to have access to those student activities, shall enter its written findings of facts and opinion in the journal, and shall issue an order containing the terms and conditions to both the residential parent and the parent of the child who is

not the residential parent. The court shall include in every order issued pursuant to this division notice that any school official or employee who knowingly fails to comply with the order or division (J) of this section is in contempt of court.

(2) Subject to division (F) of section 3319.321 of the Revised Code, subsequent to the issuance of an order under division (J)(1) of this section, all school officials and employees shall permit the parent of the child who is not the residential parent to have access to any student activity under the same terms and conditions under which access is provided to the residential parent of the child, unless the residential parent has presented the school official or employee, the board of education of the school, or the governing body of the chartered nonpublic school with a copy of an order issued under division (J)(1) of this section that limits the terms and conditions under which the parent who is not the residential parent is to have access to student activities related to the child and the order pertains to the student activity in question. If the residential parent presents the school official or employee, the board of education of the school, or the governing body of the chartered nonpublic school with a copy of that type of order, the school official or employee shall permit the parent who is not the residential parent to have access to the student activity only in accordance with the most recent

order that has been issued pursuant to division (J)(1) of this section and presented to the school official or employee, the board of education of the school, or the governing body of the chartered nonpublic school by the residential parent or the parent who is not the residential parent. Any school official or employee who knowingly fails to comply with division (J) of this section or with any order issued pursuant to division (J)(1) of this section is in contempt of court.

(K)(1) If any person is found in contempt of court for failing to comply with or interfering with any order or decree granting parenting time rights issued pursuant to this section or section 3109.12 of the Revised Code or companionship or visitation rights issued pursuant to this section, section 3109.11 or 3109.12 of the Revised Code, or any other provision of the Revised Code, the court that makes the finding, in addition to any other penalty or remedy imposed, shall assess all court costs arising out of the contempt proceeding against the person and require the person to pay any reasonable attorney's fees of any adverse party, as determined by the court, that arose in relation to the act of contempt, and ~~may~~ shall award reasonable compensatory parenting time or visitation of the same type and duration, to be taken within one year, to the person whose right of parenting time or visitation was affected by the failure or interference ~~if such compensatory~~

~~parenting time or visitation is in the best interest of the child~~ unless the court finds that it is not in the best interest of the child and states the reason in writing. Any compensatory parenting time or visitation awarded under this division shall be included in an order issued by the court and, to the extent possible, shall be governed by the same terms and conditions as was the parenting time or visitation that was affected by the failure or interference.

(2) The court shall hold a hearing on a contempt action for interference with parenting time within twenty-eight days after service unless good cause is shown. The person bringing the action makes a prima facie case by showing the order, the parenting time owed, and evidence that it did not occur. The other person then shall come forward with evidence of a lawful excuse.

(3) Parenting time missed for any of the following reasons is excused:

(a) An emergency, illness, weather, a transportation failure, or another circumstance outside the person’s control;

(b) A change both parents agreed to;

(c) Compliance with a protection order or another court order;

(d) Good-faith action to protect the child or the person from imminent physical harm or abuse, if the concern is promptly

reported to law enforcement, a public children services agency, or the court.

(4) A parent shall make reasonable efforts to have the child take part in court-ordered parenting time by having the child available at the required time and place, telling the child about the parenting time, not discouraging it, and promptly telling the other parent if the child refuses. Reasonable efforts never require physical force. A child's refusal does not excuse a parent who did not make reasonable efforts.

(5) A third finding within any twenty-four months that the same person denied parenting time without lawful excuse under the same order, whether by contempt or by an entered determination under section 3109.047 of the Revised Code, is a change in circumstances for purposes of division (E)(1)(a) of section 3109.04 of the Revised Code.

(L) Any parent who requests reasonable parenting time rights with respect to a child under this section or section 3109.12 of the Revised Code or any person who requests reasonable companionship or visitation rights with respect to a child under this section, section 3109.11 or 3109.12 of the Revised Code, or any other provision of the Revised Code may file a motion with the court requesting that it waive all or any part of the costs that may accrue in the proceedings. If the

court determines that the movant is indigent and that the waiver is in the best interest of the child, the court, in its discretion, may waive payment of all or any part of the costs of those proceedings.

(M)(1) A parent who receives an order for active military service in the uniformed services and who is subject to a parenting time order may apply to the court for any of the following temporary orders for the period extending from the date of the parent’s departure to the date of return:

(a) An order delegating all or part of the parent’s parenting time with the child to a relative or to another person who has a close and substantial relationship with the child if the delegation is in the child’s best interest;

(b) An order that the other parent make the child reasonably available for parenting time with the parent when the parent is on leave from active military service;

(c) An order that the other parent facilitate contact, including telephone and electronic contact, between the parent and child while the parent is on active military service.

(2)(a) Upon receipt of an order for active military service, a parent who is subject to a parenting time order and seeks an order under division (M)(1) of this section shall notify the other parent who is subject to the parenting time order and apply to the court as soon as reasonably possible

after receipt of the order for active military service. The application shall include the date on which the active military service begins.

(b) The court shall schedule a hearing upon receipt of an application under division (M) of this section and hold the hearing not later than thirty days after its receipt, except that the court shall give the case calendar priority and handle the case expeditiously if exigent circumstances exist in the case. No hearing shall be required if both parents agree to the terms of the requested temporary order and the court determines that the order is in the child’s best interest.

(c) In determining whether a delegation under division (M)(1)(a) of this section is in the child’s best interest, the court shall consider all relevant factors, including the factors set forth in division (D) of this section.

(d) An order delegating all or part of the parent’s parenting time pursuant to division (M)(1)(a) of this section does not create standing on behalf of the person to whom parenting time is delegated to assert visitation or companionship rights independent of the order.

(3) At the request of a parent who is ordered for active military service in the uniformed services and who is a subject of a proceeding pertaining to a parenting time order or pertaining to a request for companionship rights or visitation

with a child, the court shall permit the parent to participate in the proceeding and present evidence by electronic means, including communication by telephone, video, or internet to the extent permitted by rules of the supreme court of Ohio.

(N) The juvenile court has exclusive jurisdiction to enter the orders in any case certified to it from another court.

(O) As used in this section:

(1) “Abused child” has the same meaning as in section 2151.031 of the Revised Code, and “neglected child” has the same meaning as in section 2151.03 of the Revised Code.

(2) “Active military service” and “uniformed services” have the same meanings as in section 3109.04 of the Revised Code.

(3) “Confidential law enforcement investigatory record” has the same meaning as in section 149.43 of the Revised Code.

(4) “Parenting time order” means an order establishing the amount of time that a child spends with the parent who is not the residential parent or the amount of time that the child is to be physically located with a parent under a shared parenting order.

(5) “Record” means any record, document, file, or other material that contains information directly related to a child, including, but not limited to, any of the following:

(a) Records maintained by public and nonpublic schools;

(b) Records maintained by facilities that provide child care, as defined in section 5104.01 of the Revised Code, publicly funded child care, as defined in section 5104.01 of the Revised Code, or pre-school services operated by or under the supervision of a school district board of education or a nonpublic school;

(c) Records maintained by hospitals, other facilities, or persons providing medical or surgical care or treatment for the child;

(d) Records maintained by agencies, departments, instrumentalities, or other entities of the state or any political subdivision of the state, other than a child support enforcement agency. Access to records maintained by a child support enforcement agency is governed by section 3125.16 of the Revised Code.

Sec. 3109.053. (A) In any divorce, legal separation, or annulment proceeding and in any proceeding pertaining to the allocation of parental rights and responsibilities for the care of a child, the court may require, by rule or otherwise, that the parents attend classes on parenting or other related issues or obtain counseling before the court issues an order allocating the parental rights and responsibilities for the care of the minor children of the marriage. If a court in any proceeding requires parents to attend classes on parenting or other related

issues or to obtain counseling, the court may require that the parents' children attend the classes or counseling with the parents. ~~If the court orders the parents to attend classes or obtain counseling, the court shall impose the cost of the classes and counseling on, and may allocate the costs between, the parents, except that if the court determines that both parents are indigent, the court shall not impose the cost of the classes or counseling on the parents.~~

(B) Parents may agree to use a guardian ad litem, parenting coordinator, mediator, evaluator, class, counseling, or supervised parenting time or exchanges, and to divide the cost. A parent who requests a service may be ordered to pay for it. Otherwise, a parent who has not agreed to pay for a service shall not be ordered to pay for it because the court required or appointed it. A service the court requires without that agreement shall be provided without charge to that parent.

(C) A parent's refusal or inability to pay for a service shall not delay a hearing and shall not be a reason to deny, restrict, or condition parental rights, parenting time, or equal status, or their restoration or expansion.

(D) This section applies notwithstanding division (C) of section 3109.04 and sections 3109.052 and 3109.055 of the Revised Code. This section does not limit filing fees, court costs, an award of attorney's fees, restitution, or an order

that a parent pay for a service as a remedy for abuse, domestic violence, or interference with parenting time that the court has found the parent committed.

Sec. 3109.401. (A) The general assembly finds the following:

(1) That the parent and child relationship is of fundamental importance to the welfare of a child, and that the relationship between a child and each parent should be fostered unless inconsistent with the child’s best interests;

(2) That parents have the responsibility to make decisions and perform other parenting functions necessary for the care and growth of their children;

(3) That the courts, when allocating parenting functions and responsibilities with respect to the child in a divorce, dissolution of marriage, legal separation, annulment, or any other proceeding addressing the allocation of parental rights and responsibilities, must determine the child’s best interests;

(4) That the courts and parents must take into consideration the following general principles when allocating parental rights and responsibilities and developing appropriate terms for parenting plans:

(a) Children are served by a parenting arrangement that best provides for a child’s safety, emotional growth, health, stability, and physical care.

(b) Exposure of the child to harmful parental conflict should be minimized as much as possible.

(c) Whenever appropriate, parents should be encouraged to meet their responsibilities to their children through agreements rather than by relying on judicial intervention.

(d) When a parenting plan provides for mutual decision-making responsibility by the parents but they are unable to make decisions mutually, they should make a good faith effort to utilize the mediation process as required by the parenting plan.

(e) ~~In~~ Subject to section 3109.044 of the Revised Code, in apportioning between the parents the daily physical living arrangements of the child and the child's location during legal and school holidays, vacations, and days of special importance, a court should not impose any type of standard schedule unless a standard schedule meets the needs of the child better than any proposed alternative parenting plan.

(5) That fit parents ordinarily determine their children's interests, and that a court, guardian ad litem, or other third party is not presumed to be a better judge of those interests than a fit parent.

(B) It is, therefore, the purpose of this chapter, when it is in the child's best interest, to foster the relationship between the child and each parent when a court allocates parental rights and responsibilities with respect to the child

in a divorce, dissolution, legal separation, annulment, or any other proceeding addressing the allocation of parental rights and responsibilities.

Sec. 3119.024. (A) Every child support order shall state the amount of parental support and the amount of accountable child support. Both are child support for all purposes of the Revised Code and federal law, including Title IV-D of the Social Security Act, income withholding, arrearages, and Chapter 3115. of the Revised Code. Neither is spousal support. As used in this section:

(1) “Parental support” means support of the child paid to the parent or caretaker with whom the child resides, for the child’s general support through the household, including housing, utilities, food, transportation, household costs, and caregiving. Parental support is not subject to accounting.

(2) “Accountable child support” means support to be spent on or saved for the child for the expenditures listed in division (C) of this section. Accountable child support is subject to accounting under division (D) of this section.

(B) Accountable child support consists of all of the following:

(1) The child care cost included in the calculation;

(2) Any amount added by deviation under section 3119.22 of the Revised Code for an expenditure listed in division (C) of this section;

(3) Any further amount the parents agree to, or the court designates on a party's request, not exceeding the amount the court finds the child reasonably requires for the expenditures listed in division (C) of this section.

The remainder of the obligation is parental support. Cash medical support and health care coverage shall be ordered as otherwise provided in this chapter and are not part of either component.

(C) Accountable child support is accounted for by spending on the child for clothing; school tuition, fees, supplies, and tutoring; child care; extracurricular activities, lessons, camps, and equipment; child-specific medical costs not otherwise allocated; and deposits into an account held only for the child.

(D)(1) Once in any twelve months, the obligor may request, through the family support enforcement agency, an accounting for the preceding twelve months.

(2) Within sixty days after the request, the obligee shall give the agency records showing where the accountable child support was spent, consisting of the payee, date, and amount of each payment the obligee identifies as made for the child.

(3) A bank, credit card, or payment-application statement, an invoice, or a payment confirmation is a sufficient record. For a cash payment, the obligee’s signed statement of the payee, date, and amount is sufficient. The obligee is not required to itemize purchases or produce receipts.

(4) The agency shall provide the records to the obligor without any address or information the court has ordered withheld.

(5) Division (D) of this section does not apply to support assigned to the state.

(E) If the obligee does not account for all accountable child support received in the period, the agency shall determine the unaccounted amount. Division (F) of section 3109.047 of the Revised Code applies to that determination. On entry, the unaccounted amount shall be credited, dollar for dollar, against the obligor’s accountable child support due over the next twelve months. The credit is a deviation under section 3119.22 of the Revised Code, and the entered determination is the finding that section requires.

(F) The obligor shall pay the full order until a credit is entered. An accounting dispute does not suspend, reduce, or excuse support. Division (E) of this section does not modify any support already due.

(G) Divisions (D) and (E) of this section apply only while a tribunal of this state has continuing, exclusive jurisdiction to modify the order under section 3115.205 of the Revised Code.

Sec. 3125.10. Each county shall have a child support enforcement agency. A government entity designated under former section 2301.35 of the Revised Code prior to October 1, 1997, or a private or government entity designated under section 307.981 of the Revised Code on or after that date may serve as a county's child support enforcement agency. The agency is also the county's family support enforcement agency and, as such, performs the duties assigned by sections 3109.047 and 3119.024 of the Revised Code. Those duties are not Title IV-D activities and shall be funded and accounted for separately from the agency's Title IV-D program.

Section 2. That existing sections 2919.23, 3109.03, 3109.04, 3109.042, 3109.043, 3109.051, 3109.053, 3109.401, and 3125.10 of the Revised Code are hereby repealed.

Section 3. (A) Sections 3109.043 and 3109.044 of the Revised Code, as amended or enacted by this act, apply to any allocation of parental rights and responsibilities decided on or after the effective date of this section, including in a case pending on that date.

(B) An order allocating parental rights and responsibilities or granting parenting time that is in effect on

the effective date of this section remains in effect. A parent may seek equal status under division (E)(1)(c) of section 3109.04 of the Revised Code, as amended by this act. Otherwise, the enactment of this act is not grounds to modify an order.

(C) For a restriction, as defined in section 3109.046 of the Revised Code, that is in effect on the effective date of this section, the period under division (D) of that section ends on the later of thirty-six months after the restriction took effect or twelve months after the effective date of this section, subject to one extension under that division.

(D) Section 2919.23, division (K) of section 3109.051, and section 3109.047 of the Revised Code, as amended or enacted by this act, apply to conduct occurring on or after the effective date of this section, regardless of the date of the order.

Section 4. Sections 3109.047 and 3119.024 of the Revised Code, as enacted by this act, take effect one year after the effective date of this section. Section 3119.024 of the Revised Code applies to a child support order issued or modified on or after that date. On a party’s request, the court, or the child support enforcement agency in the case of an administrative child support order, shall state the components of a child support order in effect on that date under division (B) of section 3119.024 of the Revised Code without changing the total amount of the order. A change in circumstances is not required.

Section 5. This act does not change the method of calculating the total child support obligation under Chapter 3119. of the Revised Code. An order under division (E)(1)(c) of section 3109.04 of the Revised Code, as amended by this act, is not by itself grounds to modify a child support order.

Section 6. (A) The General Assembly requests that the Supreme Court adopt statewide forms for a shared parenting plan and for a motion under division (E)(1)(c) of section 3109.04 of the Revised Code, as amended by this act.

(B) The Department of Job and Family Services shall prescribe the forms required for sections 3109.047 and 3119.024 of the Revised Code, as enacted by this act.

(C) The duties under sections 3109.047 and 3119.024 of the Revised Code, and services provided without charge under section 3109.053 of the Revised Code, as amended or enacted by this act, shall be funded from state appropriations, existing local resources, and, to the extent legally available, federal access and visitation grants under 42 U.S.C. 669b. No Title IV-D funds shall be used for a purpose not permitted by federal law.

(D) The General Assembly requests that the Supreme Court publish annually the number of initial allocations of parental rights and responsibilities ordering substantially equal parenting time; the number of motions under division (E)(1)(c) of section 3109.04 of the Revised Code granted and denied; and

the number of complaints, determinations, objections, referrals, prosecutorial declinations, accounting requests, and entered credits under sections 3109.047 and 3119.024 of the Revised Code.

Section 7. If Sub. S.B. 174 of the 136th General Assembly is enacted, the General Assembly intends that this act be conformed to it.